



McDonnell Douglas Analysis

Overview

Most employment discrimination cases are established through circumstantial evidence. This evidence doesn't stand alone in establishing that discrimination occurred, but is instead presented in an effort to show that a discriminatory motive should be deduced from a consideration of the facts in context. *McDonnell Douglas Corp. v. Green*, [73 FEOR 9001](#), 411 U.S. 792 (1973) provides the framework for the analysis of circumstantial evidence.

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Key Points

These key-point summaries cannot reflect every fact or point of law contained within a source document. For the full text, follow the link to the cit source. The references to **Hadley** in this Quick Start Guide are to federal employment law expert Ernest Hadley's treatise, *A Guide to Federal Sector Equal Employment Law and Practice* (Dewey Publishing, Inc.), to which **cyberFEDS®** has exclusive V rights.

In general

- The long-established framework for establishing disparate treatment discrimination with circumstantial evidence is provided by *McDonnell Douglas Corp. v. Green*, [73 FEOR 9001](#), 411 U.S. 792 (1973).
- Under *McDonnell Douglas*, a complainant must first establish a prima facie case by presenting enough evidence to raise an inference of discrimination. The agency may then attempt to rebut the complainant's prima facie case by articulating a legitimate, nondiscriminatory explanation for its action. If the agency provides such an explanation, the complainant can still prevail by establishing b the preponderance of the evidence that the agency's stated reason for its action is pretext for discrimination. *McDonnell Douglas Corp. v. Green*, [73 FEOR 9001](#), 411 U.S. 792 (1973).

Prima facie case

- For a complainant to prevail on an EEO claim involving circumstantial evidence, "she must first establish a prima facie case of discrimination by presenting facts that, if unexplained, reasonably give rise to an inference of discrimination, i.e., that a prohibited consideration was a factor in the adverse employment action." *Collins v. Environmental Protection Agency*, [111 LRP 7826](#), EEOC No. 0120081048 (EEOC OFO 2011).
- **Hadley:** The exact elements of the prima facie case vary depending on the factual situation involved. In most cases, the prima facie case will consist of the complainant demonstrating that he a member of a protected class, that the agency took some employment action, and that, in taking that action, the agency treated the complainant differently than similarly situated employees outsid of the protected class. [Hadley Guide to Federal Sector Equal Employment Law and Practice: Elements of Prima Facie Case](#).
- Resolving a split in the U.S. Circuit Courts of Appeal, the U.S. Supreme Court found that a plaintiff in a majority group can establish a prim facie case of discrimination under Title VII without having to present evidence of "background circumstances" that show the defendant is t unusual employer who discriminates against the majority. This was consistent with EEOC case law in federal administrative decisions. *Ames v. Ohio Department of Youth Services*, [125 LRP 17312](#), No. 23-1039 (U.S. 06/05/25).
- The EEOC found a legal administrative specialist failed to establish a prima facie case of disability discrimination regarding his removal because he did not show he was qualified -- he could not meet the time standards for his position. He asserted that the agency did not mitigate the time standards, but the EEOC explained that agencies are not obligated to lower performance standards as a reasonable accommodation. *Marlin B. v. Department of Veterans Affairs*, [123 LRP 31290](#), EEOC No. 2021004416 (EEOC OF 2023).
- **Comparative employees**
 - A "comparative employee," also referred to as a comparator, is a similarly situated individual who is not in the same protected group as the complainant. "It is well-established that in order for comparative evidence relating to other employees to be considered relevant, all relevant aspects of the employees' work situation must be identical or nearly identical, i.e., that the employees report to the same supervisor, perform the same job function, and work during the same time periods." *Sibell v. U.S. Postal Service*, [109 LRP 23135](#), EEOC No. 0720080020 (EEOC OFO 2009).
 - The identified comparison employees were similarly situated to the complainant, a city carrier assistant for the U.S. Postal Service. Although the comparators had different job titles, their responsibilities included delivering the mail. The comparison employees also had the same disciplinary record, the same second-line supervisor and engaged in the same act of alleged misconduct - failing to deliver mail assigned to them. *Cathy V. v. U.S. Postal Service*, [119 LRP 6631](#), EEOC No. 0120172200 (EEOC C 2019).
 - The EEOC found that the agency engaged in race discrimination when it suspended the complainant for seven days for failing a blk alcohol test. Although two white employees who were treated less severely for unacceptable blood alcohol levels had a different

supervisor, they were considered to be similarly situated because they had the same second level supervisor who approved the action taken. *Ferrell v. U.S. Postal Service*, [108 LRP 37189](#), EEOC No. 0120064642 (EEOC OFO 2008).

- The agency subjected the complainant to discrimination based on race (African-American) and age (65) when management disciplined him for violence in the workplace but did not impose similar discipline on a younger Caucasian employee involved in the same incident. The EEOC recognized that the younger employee worked for a different supervisor, but found the zero-tolerance policy applied to all employees, and the agency could not explain why it was not implemented uniformly. *Davis v. Department of Veterans Affairs, Veterans Health Administration*, [113 LRP 14469](#), EEOC No. 0120123564 (EEOC OFO 2013).
- The agency subjected the complainant to sex discrimination when it terminated her for attendance problems but did not similarly discipline a male employee with a far worse attendance record. The agency asserted that the two were not similarly situated because the male employee had FMLA-protected absences. However, the record did not support this claim. *Bridgewater v. U.S. Postal Service*, [107 LRP 54755](#), EEOC No. 0720070028 (EEOC OFO 2007).
- The complainant was subjected to discrimination on the basis of his race (white) when he wasn't selected for a vacant forester position. Although the agency asserted that he wasn't promoted because he was under investigation for violating a court order, two Native American comparators received promotions even though both were also under investigation for violating the court order. *Rodgers v. Department of the Interior, Bureau of Indian Affairs*, [109 LRP 74262](#), EEOC No. 0120071822 (EEOC OFO 2009).
- A supervisor discriminated against the complainant on the basis of her race (Korean-Asian) and national origin (Korean) when, disregarding progressive discipline, he placed her on off-duty status and removed her after she argued with him over her work assignment. Two similarly situated Caucasian employees who engaged in incidents involving unwelcome physical contact were not punished as severely. *Sibell v. U.S. Postal Service*, [109 LRP 23135](#), EEOC No. 0720080020 (EEOC OFO 2009).
- The complainant -- a mail carrier who was removed because her workers' compensation claim restricted her from performing any work, yet she continued to engage in outside employment as a Lyft driver, which she failed to disclose -- did not show she was subjected to unlawful discrimination. The coworkers she referenced as receiving more favorable treatment were not similarly situated because their alleged misconduct involved verbal altercations, while the complainant failed to disclose outside employment. *Eryn M. v. U.S. Postal Service*, [124 LRP 29719](#), EEOC No. 2023003996 (EEOC OFO 2024).
- The comparative employee cited by the complainant in his sex discrimination claim was not similarly situated because she had a different job, with a different supervisor, in a different division. Also, she did not supervise any employees. Accordingly, the complainant failed to establish a prima facie case of sex discrimination. *Jarrett C. v. Export-Import Bank of the United States*, [119 LRP 17877](#), EEOC No. 0120170213 (EEOC OFO 2019).
- The EEOC affirmed an administrative judge's determination that the agency did not discriminate against the female complainant when it paid a male worker in the same position a higher salary. The complainant was not similarly situated to the coworker because he was a new hire from the private sector, while the employee was an internal hire. The agency noted that it had to match the coworker's private sector salary because of the difficulty in finding highly qualified candidates. *Crim v. Department of Veterans Affairs*, [106 LRP 22497](#), EEOC No. 01A60301 (EEOC OFO 2006).
- **Hadley:** In cases where there is no comparative evidence to establish a prima facie case of discrimination, "the complainant must be able to point to some other evidence that, if unrebutted, would at least permit an inference of discrimination." [Hadley Guide to Federal Sector Equal Employment Law and Practice: Elements of Prima Facie Case](#).
- **Hadley:** A complainant does not necessarily need to point to a similarly situated comparative employee outside of her protected group to establish a prima facie case of discrimination. "On the other hand, the complete absence of any evidence to support an inference of unlawful discrimination is fatal to the complainant's ability to establish a prima facie case." [Hadley Guide to Federal Sector Equal Employment Law and Practice: Comparison Employees](#), citing *Gray v. Department of the Army*, [96 FEOR 13395](#), EEOC No. 01954069 (EEOC OFO 1996).
- Although evidence of comparative employees is often used to establish a prima facie case of discrimination, a complainant can also submit some evidence from which, if otherwise unexplained, an inference of discrimination can be drawn. *Scura v. U.S. Postal Service*, [99 FEOR 3110](#), EEOC No. 01965021 (EEOC 1998).
- The complainant established a prima facie case of discrimination because shortly after she accused her supervisor of acting in a racially discriminatory manner, she was subjected to an investigation of her management style and released. *Farrington v. Department of Homeland Security*, [111 LRP 7053](#), EEOC No. 0720090011 (EEOC OFO 2011).
- The complainant was reasonably put on emergency placement because she refused to comply with a work order, but the length of the placement -- 2 1/2 months -- was the product of religious discrimination. The complainant did not identify similarly situated employees of other religions who were treated more favorably. However, she raised an inference of discrimination, and the agency could not legitimately explain why it imposed such a lengthy emergency placement. *Clark-Robinson v. U.S. Postal Service*, [107 LRP 3888](#), EEOC No. 0720060037 (EEOC OFO 2007).

Agency's legitimate explanation

- Once the agency articulates a legitimate, nondiscriminatory reason for its disputed action, a complainant can still prevail on a disparate treatment claim by establishing that the explanation was pretext for discrimination. *McDonnell Douglas Corp. v. Green*, [73 FEOR 9001](#), 411 U.S. 792 (1973).
- **Hadley:** When providing a legitimate reason for a challenged action, an agency "must do more than merely distinguish the particular facts of a situation. It is required to articulate some meaningful distinction which serves a legitimate purpose of the agency." [Hadley Guide to Federal Sector Equal Employment Law and Practice: Similarly Situated Employees; Meaningful Distinctions](#).

- **Hadley:** The agency's burden of producing a legitimate, nondiscriminatory explanation for a disputed action "is not onerous, yet it is a burden that must be satisfied through the introduction of evidence that gives sufficient details as to its reasons to permit the complainant a chance to rebut those reasons." Generally, the more subjective the reasons, "the more detail the agency will have to provide to sustain its burden of production." [Hadley Guide to Federal Sector Equal Employment Law and Practice: Agency Burden of Production -- Circumstantial Evidence.](#)
- **Hadley:** Although the ultimate burden of persuasion is on the complainant, once a prima facie case is established, the complainant is relieved of any further burden, unless the agency comes forward with a specific explanation for its action. In *Treese v. U.S. Postal Service*, [2002 LRP 256](#), EEOC No. 01995884 (EEOC OFO 2002), the Commission found that the agency failed to come forward with an explanation of its reason for demoting the complainant during a restructuring and improperly tried to shift the entire burden of proof to the complainant. [Hadley Guide to Federal Sector Equal Employment Law and Practice: Disparate Treatment -- Failure of Agency to Provide Reasons.](#)
- **Hadley:** An agency may not decline to provide the specific reasons for taking a personnel action, even when that denial is based on agency nondisclosure regulations. To permit an agency to refuse to provide the specific reasons for its actions deprives the complainant of full and fair opportunity to demonstrate pretext. [Hadley Guide to Federal Sector Equal Employment Law and Practice: Disparate Treatment -- Failure of Agency to Provide Reasons.](#)
- **Hadley:** The agency does not sustain its burden of production when the two potential selecting officials each testify that the other one was responsible for the decision and neither official gave a reason for the selection. See *Linton v. U.S. Postal Service*, [102 LRP 28891](#), EEOC No. 01992294 (EEOC OFO 2002). [Hadley Guide to Federal Sector Equal Employment Law and Practice: Disparate Treatment -- Failure of Agency to Provide Reasons.](#)
- **Hadley:** The fact that the selecting official retired prior to the EEO investigation does not excuse the agency from coming forward with evidence of the reasons for making a selection. See *Eubanks v. Department of Housing and Urban Development*, [105 LRP 45742](#), EEOC No. 01A40070 (EEOC OFO 2005). [Hadley Guide to Federal Sector Equal Employment Law and Practice: Disparate Treatment -- Failure of Agency to Provide Reasons.](#)
- The complainant prevailed on his discrimination claim when the agency could not muster sufficient specific evidence to support its decision not to select him for a supervisory chemist position. In part, missing documentation from the selection process and the vague recollections of those involved prevented the agency from specifically explaining why the selectee was chosen over the complainant. *Nyanzi v. Department of Agriculture*, [109 LRP 8194](#), EEOC No. 0120065317 (EEOC OFO 2009).
- **Hadley:** An agency "cannot sustain its burden of production by giving conflicting reasons for an employment decision." [Hadley Guide to Federal Sector Equal Employment Law and Practice: Agency Burden of Production -- Circumstantial Evidence.](#)
- **Hadley:** An agency cannot sustain its burden of articulating a legitimate nondiscriminatory reason for its action "without submitting evidence of who made a specific employment decision and why." [Hadley Guide to Federal Sector Equal Employment Law and Practice: Agency Burden of Production -- Circumstantial Evidence.](#)
- **Hadley:** An agency's stated reason for a challenged action "may not be one that is concocted after the fact." [Hadley Guide to Federal Sector Equal Employment Law and Practice: Post Hoc Justifications.](#)
- **Hadley:** Under *St. Mary's Honor Center v. Hicks*, [103 LRP 20022](#), 509 U.S. 502 (U.S. 1993), the prima facie case establishes a rebuttable presumption of discrimination that disappears when a legitimate reason is advanced. But in the absence of a legitimate reason, the presumption entitles the employee to judgment. [Hadley Guide to Federal Sector Equal Employment Law and Practice: Commission Interpretation of Hicks.](#)
- Management's general assertion that the selectee scored higher on an interview than the complainant was not sufficient to meet the agency's burden of establishing a legitimate, nondiscriminatory reason for not selecting the complainant. Panelists did not provide any explanation as to how the selectee's performance during the interview was superior. *Harold P. v. General Services Administration*, [124 LRP 32387](#), EEOC No. 2024000413 (EEOC OFO 2024).
- A mail processing clerk for the U.S. Postal Service established a prima facie case of reprisal. The day after the clerk's supervisor completed an affidavit in connection with the clerk's EEO complaint, the supervisor set up an investigative interview regarding the clerk's attendance and informed her that the interview could lead to discipline or removal. Because the agency failed to provide an explanation for the interview, the clerk prevailed on her claim of reprisal. *Mercedes A. v. U.S. Postal Service*, [122 LRP 22893](#), EEOC No. 2021001289 (EEOC OFO 2022).
- A program specialist/liaison for the Department of Agriculture who was not selected for a position established a prima facie case of discriminatory disparate treatment. The agency's explanation for its decision fell short because it was not sufficiently specific, clear, and individualized. The agency outlined the general mechanics of the selection process and said that the selectee had a high score from HR but provided no documentation showing the exact process by which applicants were rated. *Minna Z. v. Department of Agriculture*, [124 LRP 12644](#), EEOC No. 2023002336 (EEOC OFO 2024).
- The EEOC found the agency subjected a debt specialist to reprisal when he was suspended after engaging in EEO activity. The EEOC noted the AJ's indication that he had "serious questions" about whether the agency submitted a legitimate reason for suspending the complainant. It further noted management's acknowledgement that this was the complainant's first formal discipline in over 30 years of employment, and it found that the agency did not adequately explain why an entire week of suspension was appropriate. *Joel P. v. Social Security Administration*, [123 LRP 34519](#), EEOC No. 2023002616 (EEOC OFO 2023).

- Although the complainant was on the best qualified list, the selecting official interviewed only applicants without EEO activity. The agency's description of the general selection process mechanics was insufficiently specific to provide a legitimate explanation for the agency's decision not to interview the complainant for a position. Accordingly, the EEOC found her nonselection was the product of retaliation. *Ashlea P. v. Department of Homeland Security, Customs and Border Protection*, [119 LRP 23043](#), EEOC No. 0120182299 (EEOC OFO 2019).
- The complainant prevailed on his claim that he was not selected for a promotion in retaliation for his EEO activity. He established a prima facie case of retaliation and the agency failed to provide legitimate, nondiscriminatory reasons for not selecting him. *Ponisciak v. Social Security Administration*, [112 LRP 34106](#), EEOC No. 0720110031 (EEOC OFO 2012).
- The agency subjected the complainant to reprisal when it denied his request to swap leave with a coworker. The agency failed to articulate a legitimate, nondiscriminatory reason for its action. All the management officials interviewed denied knowledge of the leave issue, and the official's signature on the denial was illegible. Because the complainant was deprived of an opportunity to demonstrate pretext, the EEOC found he established discrimination. *Mitchell v. U.S. Postal Service*, [113 LRP 35289](#), EEOC No. 0120131310 (EEOC OFO 2013).
- The EEOC found agency subjected the complainant to disability discrimination and retaliation for prior EEO activity based on its failure to adequately explain his performance evaluation and his nonselection for a higher level position. *Koudry v. Department of Education*, [109 LRP 72641](#), EEOC No. 0120080343 (EEOC OFO 2009).
- The agency's "woefully inadequate" explanation for its decision to drop the complainant from further consideration for a police officer position led to a finding of discrimination. The EEOC has found in such cases that the agency's failure to explain its decision prevents the complainant from having a "full and fair opportunity to demonstrate pretext." *Rodriguez v. Department of the Treasury*, [95 FEOR 3293](#), EEOC No. 01983390 (EEOC 1999).
- A female federal air marshal could not rebut the Transportation Security Administration's legitimate explanation for contacting her while she was on maternity leave and for not allowing her to remain on light duty for a year. *Lu T. v. Department of Homeland Security Transportation Security Administration*, [119 LRP 15254](#), EEOC No. 0120170919 (EEOC OFO 2019).
- Even if a housekeeping aide for the Veterans Health Administration established a prima facie case of sex discrimination, he could not rebut the agency's legitimate explanation that it suspended him for 10 days for his loud manner with a patient and for disciplining a subordinate without allowing him union representation. *Vince D. v. Department of Veterans Affairs, Veterans Health Administration*, [118 LRP 49837](#), EEOC No. 0120171501 (EEOC OFO 2018).
- The complainant could not rebut the agency's explanation that it terminated him after finding he had been disbarred by the Indiana Supreme Court for "chronically deceptive behavior, a willingness to knowingly falsify legal documents, and a serious lack of candor and trustworthiness." The agency legitimately decided he could not be trusted with reviewing and processing incoming invoices on a contract with annual expenditures of over \$550 million. *Herman F. v. Department of State*, [118 LRP 50024](#), EEOC No. 0120172059 (EEOC OFO 2018).
- The agency did not subject the complainant to discrimination based on disability or reprisal. The agency explained that it terminated her for deficiencies in conduct and performance. She was unresponsive to coaching and did not display a willingness to improve, failed to meet deadlines, and drove a government vehicle in an unsafe manner. She did not show the agency's explanation was pretext for discrimination. *Chavers v. Department of Commerce*, [113 LRP 42527](#), EEOC No. 0120113128 (EEOC OFO 2013).
- The Department of Veterans Affairs did not subject a housekeeping aide to discrimination based on age or disability when it terminated him during his probationary period. The agency legitimately explained he was terminated for inappropriate behavior, poor attendance, and failure to follow instructions. The aide did not produce evidence that these reasons were a pretext for unlawful discrimination. *Collins v. Department of Veterans Affairs*, [110 LRP 74079](#), EEOC No. 0120103216 (EEOC OFO 2010).
- The complainant could not rebut the agency's legitimate explanation that it selected the most qualified individual for the supervisory IT specialist position he sought. The selecting official detailed the selection process, which included a three-person selection panel, individual ratings of the candidates' responses to a pool of questions, and scoring in various categories. The selectee had the highest score in most categories. *Ly v. Department of Veterans Affairs*, [109 LRP 30381](#), EEOC No. 0120090610 (EEOC OFO 2009).

Pretext

- **Hadley:** If the agency provides a legitimate explanation for its disputed action, the third step in the analysis of a circumstantial evidence case must be to provide the complainant with "a full and fair opportunity to demonstrate the employer's articulated legitimate, nondiscriminatory reason is a pretext for discrimination." The complainant can do this by establishing the stated explanation is not true or that it is not actually the reason for its action. [Hadley Guide to Federal Sector Equal Employment Law and Practice: Pretext -- Circumstantial Evidence Cases](#).
- **Hadley:** The focus in the third step of the analysis "is on the credibility of the agency official who took or recommended the personnel decision. The complainant's belief that the agency's reasons are pretext, no matter how genuine and how strong," is not relevant in showing pretext. [Hadley Guide to Federal Sector Equal Employment Law and Practice: Pretext -- Circumstantial Evidence Cases](#).
- **Hadley:** There is no one formula that can be applied to reach a determination that evidence is sufficient to establish pretext. "The outcome is likely to hinge, in part, upon the number of inconsistencies and discrepancies, their nature, and their significance in terms of the overall case." [Hadley Guide to Federal Sector Equal Employment Law and Practice: Causal Connections](#).
- Pretext can be demonstrated by "showing such weaknesses, implausibilities, inconsistencies, incoherencies, or contradictions in the [Agency's] proffered legitimate reasons for its action that a reasonable fact finder could rationally find them unworthy of credence." *Opar Addo v. U.S. Postal Service*, [107 LRP 68832](#), EEOC No. 0120060802 (EEOC OFO 2007); *Dalesandro v. U.S. Postal Service*, [106 LRP 5671](#), EEOC No. 01A50250 (EEOC OFO 2006).
- Inconsistencies in a manager's explanation for a selection decision can establish pretext. *Joseph M. v. Department of Transportation, Federal Aviation Administration*, [123 LRP 29977](#), EEOC No. 2022003005 (EEOC OFO 2023).

- An employee's speculation and subjective belief that she was subjected to discrimination will not establish pretext. *Erika S. v. Agency for International Development*, [123 LRP 30145](#), EEOC Nos. 2022003975, 2023002760 (EEOC OFO 2023).
- A city postal carrier established pretext for sex discrimination when she was disciplined but male coworkers who similarly did not finish the routes in an eight-hour period were not disciplined. *Laquita H. v. U.S. Postal Service*, [123 LRP 31447](#), EEOC No. 2022003864 (EEOC OFO 2023).
- The agency's explanation for disciplining the complainant for failure to deliver mail was pretext for discrimination. None of the white employees who failed to deliver mail were disciplined while the complainant and another black employee were placed off duty and receive removal notices. *Cathy V. v. U.S. Postal Service*, [119 LRP 6631](#), EEOC No. 0120172200 (EEOC OFO 2019).
- A senior federal air marshal for the Transportation Security Administration was subjected to sex and age discrimination when she was not selected for a position. The EEOC found the explanations provided by selection panel members were "suspiciously thin and vaporous" and were not supported by the record. Further, the marshal possessed qualifications that were plainly superior to those of the selectee. *Mafalda H. v. Department of Homeland Security, Transportation Security Administration*, [118 LRP 34725](#), EEOC No. 0120170996 (EEOC OFO 2018).
- A supervisor explained that an air traffic control specialist did not receive a positive job reference because of his frequent tardiness and his need for close supervision. However, the EEOC found the explanation was pretext for reprisal because he was marked tardy one time in a year before the nonselection and that he was responsible for his own work and also developed newer employees. *Ira P. v. Department of Transportation, Federal Aviation Administration*, [119 LRP 3121](#), EEOC No. 0720180007 (EEOC OFO 2018).
- A disaster assistance employee for the Federal Emergency Management Agency was subjected to discrimination based on her race when she was not allowed to stay at a hotel close to her assignment, she was demobilized, she received an unsatisfactory performance rating, management forced her to change her travel time, and she was not allowed to perform the duties of her deployment. The EEOC agreed with the administrative judge's finding that the agency's articulated reasons for its actions were not credible, but were instead pretext for discrimination. *Moreland v. Department of Homeland Security, Federal Emergency Management Agency*, [113 LRP 42624](#), EEOC No. 0720120006 (EEOC OFO 2013).
- The U.S. Postal Service subjected two city carriers to discrimination based on their race (African-American) and sex (male) when they were terminated. Although a supervisor claimed they were terminated because of poor performance, the EEOC found this was pretext. The supervisor was not credible, and the evidence established that the carriers were significantly hampered by being assigned a route with no street signs, flooding, downed trees, and vacant and damaged homes due to Hurricane Katrina. They had only been working street routes for four days when they were given unsatisfactory ratings. *Payne and Williams v. U.S. Postal Service*, [111 LRP 931](#), EEOC No. 0120082497 (EEOC OFO 2010).
- The complainant was subjected to sex discrimination when she wasn't selected for two agency positions. Although the agency legitimately explained that the male selectees were chosen based on their interview scores, both times the scoring process was irregular such that it indicated the explanation was pretext for discrimination. *Watson v. Department of Homeland Security, Immigration and Customs Enforcement*, [110 LRP 52909](#), EEOC No. 0720090029 (EEOC OFO 2010).
- The agency subjected the complainant to reprisal when a supervisor terminated her immediately after she told him she was going to engage in the EEO process regarding alleged sexual harassment. The EEOC found the agency's explanation that she was terminated because she refused to work a route due to a medical appointment was pretextual. *Ketring v. U.S. Postal Service*, [110 LRP 52913](#), EEOC No. 0120080466 (EEOC OFO 2010).
- The complainant was subjected to retaliation for her prior EEO activity when she was reassigned a month after a federal court granted summary judgment for the agency on her previous EEO claim. Because the differing explanations of agency officials lacked credibility, the EEOC found they were pretext for retaliation. *Fuentes v. U.S. Postal Service*, [110 LRP 41366](#), EEOC No. 0120091994 (EEOC OFO 2010).
- The complainant was subjected to sex and race discrimination when she wasn't selected for an accounts payable chief position. The agency's explanation that it chose the most qualified candidate for a position was determined to be pretext for discrimination because the selection process was unconventionally run by a single individual and the selection criteria included vague terms. *Moresi v. Department of Homeland Security*, [110 LRP 21648](#), EEOC No. 0720090049 (EEOC OFO 2010).
- The agency retaliated against the complainant for pointing out sex discrimination when it reassigned her from a branch chief position. The agency stated that she was reassigned because of her poor interpersonal skills. However, the evidence indicated this was pretext because her supervisor showed a willingness to work with her on management and communication skills but changed his position when she raised the issue of discrimination. *Detenbeck v. Environmental Protection Agency*, [107 LRP 59427](#), EEOC No. 0720070055 (EEOC OFO 2007).
- A supervisory transportation security officer established a prima facie case of retaliation regarding a letter of reprimand he was issued. But he failed to show that the agency's explanation for its decision -- the officer's violation of agency policy and standard operating procedure during a secondary passenger screening -- was pretext for retaliation. *Arnold T. v. Department of Homeland Security, Transportation Security Administration*, [124 LRP 19518](#), EEOC No. 2023002106 (EEOC OFO 2024).
- A registered nurse who formerly worked for the Department of Veterans Affairs did not rebut the agency's legitimate explanation for terminating her. During the months of the nurse's employment, she was absent on various forms of leave more than 10% of the time. Further, the chief nurse stated that her leave pattern appeared suspicious because it showed a pattern of her calling in sick around the holidays and before and after weekends, and incidents of unscheduled leave before or after a scheduled day off. The nurse argued that her absences were due to her health issues and disability, but did not reference her disability until after her excessive absences. *Darla W. v. Department of Veterans Affairs, Veterans Health Administration*, [123 LRP 32516](#), EEOC No. 2022004907 (EEOC OFO 2023).

Burden of persuasion

- At all times, the complainant has the burden of persuasion, and it is her obligation to show by a preponderance of the evidence that the agency acted on the basis of a prohibited reason. *Potter v. Department of Agriculture*, [113 LRP 39613](#), EEOC No. 0720120029 (EEOC OFO 2013), citing *St. Mary's Honor Center v. Hicks*, [103 LRP 20022](#), 509 U.S. 502 (1993).

- **Hadley:** The practical effect of *Hicks* is that a Title VII plaintiff must present at least some evidence that the employer acted for a discriminatory reason in addition to discrediting the employer's proffered reason. In the absence of such evidence, the fact finder is free, though not required, to find that the employer is being dishonest in saying the real reason for its actions is not to hide discrimination but for some other reason. [Hadley Guide to Federal Sector Equal Employment Law and Practice: Hicks and the Burden of Persuasion](#).
- **Hadley:** As applied by the Commission, *Hicks* does not require a showing of motive to be established through direct evidence demonstrating the motive of the alleged discriminating official. Like pretext, motive can be established by circumstantial evidence. [Hadley Guide to Federal Sector Equal Employment Law and Practice: Commission Interpretation of Hicks](#).

Other Resources

- [Management Directive 110, Appendix J: Model for Analysis of Disparate Treatment](#)
- [Quick Start Guide: Direct Evidence of Discrimination](#)
- [Quick Start Guide: Disparate Treatment](#)
- For more guidance, see:
 - [Hadley Guide to Federal Sector Equal Employment Law and Practice: Chapter 10 -- Theories of Discrimination -- Intentional Discrimination, Subchapter 01 -- Circumstantial Evidence Cases, Section A -- Evolution of "Disparate Treatment" Theory](#)
 - [Hadley Guide to Federal Sector Equal Employment Law and Practice: Chapter 10 -- Theories of Discrimination -- Intentional Discrimination, Subchapter 01 -- Circumstantial Evidence Cases, Section A -- Evolution of "Disparate Treatment" Theory, Subsection 01 -- Elements of *Prima Facie* Case](#)
 - [Hadley Guide to Federal Sector Equal Employment Law and Practice: Chapter 10 -- Theories of Discrimination -- Intentional Discrimination, Subchapter 02 -- Agency Burden of Production -- Circumstantial Evidence, Section A -- Disparate Treatment, Subsection 01 Similarly Situated Employees; Meaningful Distinctions](#)
 - [Hadley Guide to Federal Sector Equal Employment Law and Practice: Chapter 10 -- Theories of Discrimination -- Intentional Discrimination, Subchapter 03 -- Pretext -- Circumstantial Evidence Cases](#)

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